

23SMCV06010 23SMCV06010

County: los-angeles

Division: Civil Law and Motion

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This is an application by defendant to delay the due date for her brief, and, presumably, argument and resolution as well. One issue she raises are exhibits 21-27, which she claims (and the plaintiff does not dispute) were served on her on July 7 at about 9 am. Defendant states that this is improper. The court disagrees. First, exhibit 21 was a deed that only became relevant because a few days earlier, defendant had submitted—for the first time—a deed of trust in her favor on the property. Had defendant submitted that at any point in the last 2 years, the court would agree with the defense that exhibit 21 comes too late. But because defendant's deed was submitted at the last second, defendant will not be heard to complain that plaintiff's response was submitted late as well. As to other documents, the court can look. Plaintiff stated that these were impeachment exhibits. If truly used for that purpose and that purpose only, then there is nothing improper about presenting them late—indeed, they need not be presented ahead of time at all. If they go to defendant's last minute document, then they are proper. If they go to other things, then the objection is well taken and the court will not consider them. As to Exhibit 22, the court will look. If the deed is to a different property, then it is of very little, if any, relevance and the court agrees it likely ought not have been admitted or presented at all. As to the Loshin letter, the court can accept that the letter was written and sent, but it remains hearsay as to the truth of the matters within it. Finally, as to the lis pendens, the court will do this. The court will ASSUME the authenticity of the document (which is all the purple stamp really proves). If this turns out to be a pivotal document, the court will give defendant an

opportunity to get the formal document.

For now, though, defendant ought to assume that the document will be considered.

As to resting, the court is not sure what to do. The court asked whether defendant had more witnesses to call. Defendant said

no. As to the documents, they were not admitted. That is what it means when

there are no more witnesses and no one moves the admission of documents. However, if defendant wants to argue that the documents are crucial, and if they make a difference, the court will at least hear the argument to try and figure out whether to allow the documents to be admitted and to allow plaintiff an opportunity to rebut them.

Defendant also claims that there is a medical issue. Defendant contends that she was in the ER on Thursday, July 8 and as a result of medical issues, could not write the brief. The court will hear the medical evidence. However, this case is now tried and it needs to be resolved. The court is not in a rush to justice, but it seems that at every turn the court is met with a delay or a request for a delay.

Plaintiff was willing to forego briefing and move straight to argument—the briefing was ordered at defendant's request. This court's problem is that it is going on medical leave.

What the court might do is to have the matter resolved solely by closing briefs with no argument.

That will allow the parties to brief the issues. The court returns from leave on August 3 (but only in chambers). If there is full briefing, the court can rule from chambers, which might be a fair compromise.